

Court No. - 39

Case :- WRIT - C No. - 6483 of 2021

Petitioner :- Vikram Singh

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Dheeraj Kumar Tiwari

Counsel for Respondent :- C.S.C., Rajesh Yadav

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Deepak Verma, J.

The writ petition is directed against the recovery citation dated 30.9.2020 which has been issued by the respondent no.2 on the allegations of theft of electricity. It appears that the petitioner had approached the District Consumer Forum, Bulandshahar challenging the demand note. Initially he had won from the District Consumer Forum, but in appeal, the order passed by the District Consumer Forum had been set aside by the State forum on the ground that the Consumer Forum had no jurisdiction to entertain the dispute relating to theft of electricity.

The contention is that the State Consumer Forum did not grant adequate opportunity of hearing to the petitioner and, moreover, the dispute raised by the petitioner with regard to the demand notice on the allegations of theft of electricity has never been determined by the competent authority/forum.

Submission, then, is that in First Information Report in Case Crime no.47 of 2002 lodged under Section 39/49 of Indian Electricity Act, 2003, the petitioner has been acquitted by the competent court of law.

Noticing the above submissions, it is relevant to note that the demand notice had been issued on the allegations of theft of Electricity under the provisions of Section 135 of the Electricity Act, 2003.

The determination of civil liability for unauthorized use of electricity on account of allegations of theft is in accordance with the Clause 8.1(a) of U.P Electricity Supply Code, 2005 read with Section 126 of the Electricity Act, 2003. The petitioner has a remedy of filing an appeal under Section 127 of the Electricity Act, 2003 against the order of assessment of civil liability.

As far as the acquittal by the criminal court is concerned the same is with regard to the criminal offence, cognizance of which has been taken under Clause 8.2 of the Electricity Supply

Code, 2005. In criminal case, the evidence are to be appreciated on the principles of proof beyond reasonable doubt whereas the civil liability is assessed on the principles of preponderance of probability.

The acquittal in the criminal case would not absolve the petitioner of the civil liability for making payment for unauthorised use of electricity against the assessment on the allegations of the theft of electricity.

It is open for the petitioner to invoke the provisions of Section 127 of the Electricity Act, 2003 read with Clause 8.1 of the Electricity Supply Code 2005, to challenge the assessment order.

The writ petition is, accordingly, **dismissed**.

Order Date :- 15.3.2021

Harshita